

HEADNOTE

“If an NDA between the parties prevents one party from making submissions or producing documents, and the other party, without reasonable justification, refuses to amend the NDA to enable such production, this shall be to the detriment of the latter party.

In such cases, if a party refers to steps within the FRAND negotiation programme and the Court is unable to examine these steps due to the other party’s refusal to amend the NDA, the steps will be considered to have been taken in accordance with the Huawei v ZTE judgment.”

COURT

Local Division in Düsseldorf

PATENT

EP 2 449 782

KEYWORDS

FRAND

NDA

unwilling licensee

PROCEEDINGS

Counterclaim for revocation

Methods and apparatus for signaling
intra prediction for large blocks for
video encoders and decoders

SUMMARY

The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patents at issue relate to methods and apparatus for signaling intra prediction for large blocks for video encoders and decoders. According to the headnotes of the decision, if an NDA prevents one party from submitting evidence or documents and the other party unreasonably refuses to modify it, the latter party will be penalized by the Court's assessment. When a party relies on steps taken during FRAND negotiations that the Court cannot verify because of such an NDA dispute, those steps are presumed compliant with the Huawei v ZTE standard.